

8. WELLS FARGO BANK, N.A. v. SPANO, 25CV2319**Motion to Deem Matters Admitted**

On April 24, 2026, plaintiff Wells Fargo Bank, N.A. (“plaintiff”) filed its motion to deem matters admitted. Proof of service, also filed April 24, 2026, shows the motion was served upon defendant Nicholas Spano (“defendant”) via mail on April 22, 2026.

Defendant filed no opposition to the motion.

A party served with requests for admissions must serve a response within 30 days. (Code Civ. Proc., § 2033.250.) Failure to serve a response entitles the requesting party, on motion, to obtain an order that the genuineness of all documents and the truth of all matters specified in the requests for admission be deemed admitted. (Code Civ. Proc., § 2033.280, subd. (b).) When such a motion is made, the court must grant the motion and deem the requests admitted unless it finds that prior to the hearing, the party to whom the requests for admission were directed has served a proposed response that is in substantial compliance with the provisions governing responses. (Code Civ. Proc., § 2033.280, subd. (c); *St. Mary v. Superior Court* (2014) 223 Cal.App.4th 762, 776, 778; see also *Demyer v. Costa Mesa Mobile Home Estates* (1995) 36 Cal.App.4th 393, 395–396 [“two strikes and you’re out”].)

In this case, plaintiff served its Request for Admissions (Set One) upon defendant via mail on January 27, 2026. (Lopez Decl., ¶ 2 & Ex. 1.) Accordingly, defendant’s deadline to serve his response was March 3, 2026 (30 calendar days, extended by five days for mail service within the state of California). (Code Civ. Proc., §§ 1013, subd. (a), 2033.250, subd. (a).) As of April 22, 2026 (the date of counsel’s declaration), defendant had served no response to the Request for Admissions. (Lopez Decl., ¶ 5.)

The court grants plaintiff’s motion to deem matters admitted.

TENTATIVE RULING # 8: PLAINTIFF’S MOTION TO DEEM MATTERS ADMITTED IS GRANTED. THE TRUTH OF ALL MATTERS SPECIFIED IN PLAINTIFF’S REQUEST FOR

ADMISSION (SET ONE) ARE DEEMED ADMITTED. NO HEARING ON THIS MATTER WILL BE HELD (*LEWIS v. SUPERIOR COURT* (1999) 19 CAL.4TH 1232, 1247), UNLESS A NOTICE OF INTENT TO APPEAR AND REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY TELEPHONE TO THE CCOURT AT (530) 573-3042 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. NOTICE TO ALL PARTIES OF AN INTENT TO APPEAR MUST BE MADE BY TELEPHONE OR IN PERSON. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.